Draft for attorney review. Not legal advice.

Brand Campaign Agreement

Between **[COMPANY NAME: Desk Drop LLC]** ("**we**", "**us**", the "**Company**") and the brand named in Part 1 ("**you**"). Version 0.8.

Part 1 · This campaign

Item	Detail
Brand (legal name, address)	[BRAND LEGAL NAME], [BRAND ADDRESS]
Your contact (name, title, email, phone)	[CONTACT NAME], [TITLE], [EMAIL], [PHONE]
Tier	☐ Founding: $600 for 5 offices (offered to our first three brands only) ☐ Standard: $1,500 for 10 offices ($150 per office)
Extra offices	[NUMBER] at $150 each
Total price	$[TOTAL]
Payment	Founding: 100% within five business days of our invoice, and in any case before you ship. Standard: 50% ($[HALF]) on signing; 50% ($[HALF]) at placement confirmation (section 3)
Offices and cluster	[5 / 10 / OTHER] offices in [Flatiron, NoMad and Union Square, Manhattan]
Product (one SKU, or two flavors treated as one)	[PRODUCT, SIZE, FLAVORS]
Category (no other brand in it joins this drop)	[CATEGORY FROM OUR LIST]
Units	About 50 per office, set by each office's Tuesday headcount (30 to 80 per office): [UNITS] units, plus 10% reserve of [RESERVE], total [TOTAL UNITS]
Ship by (requested; no later than T−10)	[DATE], freight prepaid, to [RECEIVING ADDRESS]
Full refund less $100 if you cancel before (T−10)	[DATE: T−10]. On or after this date, section 8 applies (50% kept); no cancellation from the drop day
Drop day (T) and **window**	[TUESDAY OR WEDNESDAY DATE]; window T to T+4, [DATE] to [DATE]
Report by (T+7) and **debrief by** (T+10)	[DATE] · [DATE]
Unused product (your election)	☐ Return to you at your cost ☐ Release to the offices
For the QR and card	Discount code [CODE] at [SITE], or landing page [URL]; nearest retailer [RETAILER, STREET]
Optional newsletter sign-up in the survey	☐ Yes, your privacy policy is at [URL] ☐ No

Part 2 · Terms

1. What we do. We place your product in each office, or have the office place it, within one business day of delivery, in the pantry the office names and at eye level where the pantry allows (we ask each office to place it there), with a display card showing your two sentences, the allergen statement copied word for word from your label (including any "may contain" line), and a QR code unique to that office and campaign. We send you the card

text before printing. No other brand in your category (Part 1) is in the same drop. For each office we send you a placement photo from the day it was placed (taken by us or by the office) and a later photo from day 3 or day 5, and top up from your reserve where an office runs out. We run a three-question anonymous employee survey. We send you a one-page report by T+7 and hold a 20-minute debrief call by T+10. "T" is the drop day; T−n and T+n count business days (Monday to Friday, not US federal holidays). No drop day or window falls on 18 to 31 December, 18 to 31 August, or the Monday-to-Friday week containing 4 July or its observed holiday (the "blackouts").

2. What you do. (a) Ship the units and reserve in Part 1, freight prepaid, to arrive by T−5; ship by the date in Part 1, and no later than T−10. (b) Every unit is individually packaged, sealed, shelf-stable, needs no refrigeration, and has at least 60 days of shelf life left on the drop day. It contains no alcohol, cannabis, CBD or THC, is not a dietary supplement (no Supplement Facts panel), and neither its label nor the two sentences you give us make a health claim, including structure or function wording such as "supports gut health". We may edit or decline card sentences that do. (c) With or before the shipment, send us: an ingredient and allergen sheet; your logo files and two sentences for the card; the discount code or landing page; and a certificate of insurance showing product liability coverage of at least $1,000,000 per occurrence, with the Company added as an additional insured. Keep that coverage and our additional-insured status in force from your ship date until 12 months after the window closes, or until the latest best-by date on the units if that is later. If your policy is claims-made, its retroactive date must be on or before your ship date, and you will keep the coverage in force or buy an extended reporting period for that time. Product does not ship until the certificate is in hand. (d) Tell us at once about any recall or safety issue with the product, from signing until 12 months after the window closes.

3. Price and payment. The price and payment terms are in Part 1. We invoice for payment by bank transfer. Payment due on signing or before shipping must reach us before we confirm your ship date; if it has not reached us within five business days of our invoice, we may cancel the campaign and refund anything you paid. The second standard payment is due on our placement confirmation: our email, sent by T+1, listing the offices where your product was placed, with each one's placement photo. We refund or credit $150 for any office where it was not placed by T+1 (section 8). An office placed by T+1 whose photo reaches us later is added by a short follow-up email and is not refunded. We invoice that day and may hold the report until payment arrives. Prices do not include sales tax; if tax applies, it is shown on the invoice. **Founding tier only:** your next two campaigns with us are priced at $120 per office for up to 10 offices (any office beyond 10 at $150), paid in full before you ship. If we deliver everything in section 1, you will, within 30 days after the debrief, give us a short written statement of your honest experience, and allow us to publish it with your brand name together with a case study drawn from your report. When we publish them, we will say you were a founding brand at a founding price.

4. No guarantee of results. We do not guarantee sales, purchases, scans, survey responses or any other result. The report states what we observed, kept separate: units delivered, placed and depleted; survey responses; QR scans; and code redemptions you report to us. Incremental sales are not measured, and the report says so.

5. Your promises about the product. You promise that the product is safe; that its label complies with federal and state labeling law, including the declaration of the nine major food allergens; that it is within its shelf life; and that you have the right to let us use the logo and words you give us. We keep every unit in its original sealed retail package: we never open, alter, relabel or repack a unit, and we put nothing on it. We may move sealed units between shipping cartons to make up each office's count. We store sealed cases at room temperature, clean, dry, off the floor, away from heat and as the label directs, and we record best-by dates and lot numbers on arrival. We do not place a unit that arrives damaged or with less than 60 days of shelf life left on the drop day; we photograph it, send you the counts, and return it at your cost or dispose of it, as you tell us. If anyone reports a problem with the product, we remove it from that office and tell you the same day. If you ask us to pull the product (for example, for a recall), we remove it from every office within one business day.

6. Product claims. You will defend us against any claim by anyone else arising from the product, and pay any resulting settlement, judgment and reasonable lawyers' fees, except to the extent the claim is caused by our mishandling of the product. We will tell you promptly about any claim and help you respond to it. You control the defense, but you may not settle a claim in a way that admits fault for us or requires anything of us without our written consent.

7. Limit on our liability. Our total liability to you for anything to do with this agreement is limited to the fees you paid us for this campaign.

8. Cancellation and slips. You may cancel by email at any time before the drop day (T). If you cancel before T−10 (the date in Part 1), we refund everything you paid, less $100 for setup work already done. If you cancel on or after T−10, we keep 50% of the campaign price, because by then we have held the drop day with every office, begun

preparing your card and the route, and kept your category closed to other brands for that drop; we refund anything you paid above that, and you owe nothing more. From the drop day on, the campaign cannot be cancelled and the full price is payable as section 3 sets out; the office refund below, the moves for slips and events outside our control, and the exit for repeated moves still apply. If you cancel after your product reaches us, it is returned or released as you chose in Part 1 (section 9). If your product has not arrived by T−3, we move the drop one week at no charge and tell every office the same day; if the new window would overlap a blackout, the drop moves to the first Tuesday or Wednesday after it whose window does not. If the product misses the new date's T−3 too, either of us may treat the campaign as cancelled by you on or after T−10. If weather, illness, a building closure or anything else outside our control stops a drop, we move it to the next Tuesday or Wednesday whose window is clear of blackouts and tell you the same day. If a drop moves more than once for these reasons, or by more than three weeks in all, you may cancel by email for a full refund. If we cancel, we refund everything you paid. If an office leaves, declines your product, or has not placed it by T+1, and we cannot replace it with another roster office, we refund that office's share ($120 founding, $150 standard) or take it off an unpaid invoice.

9. Unused product. At the end of the window, leftover and unused reserve units are returned to you at your cost or released to the offices, as you chose in Part 1. If you chose return and have not sent a prepaid return label within ten business days after the window closes, we give unused reserve units to roster offices, and give collected leftovers back to the office they came from or dispose of them, as we judge best. A unit that has been placed in one office is never moved to another.

10. Photos, results and your report. We may use placement photos, which never show identifiable people, and survey results that identify no person or office, in our own materials; we do not identify an office there unless it agreed to be named. You may use the report for your own business, but do not publish an office's name, or a photo that identifies an office, unless we confirm that office agreed. You let us use your name, logo and card sentences on the card and in the report.

11. Our offices stay ours to introduce. For six months after the window closes, you will not approach any office we named to you for this campaign to arrange placements or sampling with it directly. This does not limit ordinary retail or online sales, general advertising, or replying to an office that contacts you on its own.

12. Confidentiality and employee data. Before you sign, we describe offices only by neighborhood, industry and Tuesday headcount, and name only offices that agreed to be named. After you sign, we share office names and addresses only as needed to run this campaign. Until two years after the window closes, you will keep them confidential and use them only for this campaign. We keep any sales or redemption numbers you share confidential, except in your report and, for a founding brand, the case study. We collect no personal data about office employees and will not ask offices for any. The only exception: if you chose the newsletter option in Part 1, an employee may tick an unticked box to share an email address with you; we send them to you once, apart from survey answers, and from then on your privacy policy governs them.

13. If the Company is not yet formed. If the Company has not been formed when this is signed, [FOUNDER NAME] signs for it in advance. Once formed, the Company takes over this agreement in [FOUNDER NAME]'s place, and you agree to that now. We will not invoice you until the Company is formed.

14. The rest. This agreement (Parts 1 and 2) is the whole agreement for this campaign. Changes need an email from each side. Notices go to the email addresses in Part 1 and our signature block. Each of us runs its own business; neither is the other's agent or employee. New York law applies. Sections 2(b), 2(c), 2(d), 3, 4, 5, 6, 7, 9, 10, 11 and 12 continue after the campaign ends. Electronic signatures count. The person signing for you can approve this spend for the brand.

For the brand	**For the Company**
Signature: _____ Date: _____	Signature: _____ Date: _____
[NAME], [TITLE]	[FOUNDER NAME], for the Company (Member once formed) · [PHONE] · [EMAIL]